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CONTEMPT OF COURT IN THE DIGITAL AGE: SOCIAL MEDIA, FREE SPEECH AND JUDICIAL AUTHORITY.

Introduction

The rise of social media and digital platforms has significantly changed the way Court proceedings and judicial decisions are discussed in the public sphere. Judicial observations, pending proceedings, and Court orders are now instantly circulated, debated, criticised, and often sensationalised across online platforms. While digital media has increased public engagement and accessibility to legal discourse, it has also blurred the line between fair criticism and interference with the administration of justice.

In India, the law of contempt seeks to preserve the dignity and authority of the judiciary and ensure that the administration of justice remains free from obstruction or undue influence. At the same time, freedom of speech and expression under Article 19(1)(a) of the Constitution of India protects the right to openly discuss and critique judicial functioning. The increasing use of social media, online commentary, edited narratives, and viral public reactions has made this balance more complex in the digital age.

Understanding Contempt of Court in India



The law of contempt in India is intended to ensure that the administration of justice remains fair, effective, and free from any obstruction or undue influence. The Supreme Court and High Courts derive the power to punish for contempt from Articles 129 and 215 of the Constitution of India, while the Contempt of Courts Act, 1971 provides the statutory framework governing contempt proceedings. The purpose of contempt law is not to protect the personal reputation of judges, but to maintain public confidence in the judicial system and uphold the dignity and authority of courts.

Under the Contempt of Courts Act, 1971, contempt is broadly divided into civil contempt and criminal contempt.

- **Civil contempt** refers to wilful disobedience of a Court's judgment, order, direction, or undertaking.
- **Criminal contempt**, on the other hand, includes acts or publications that scandalise the Court, interfere with judicial proceedings, or obstruct the administration of justice.

Indian courts have consistently recognised that fair and reasonable criticism of judicial decisions is permissible. However, when criticism crosses into deliberate attempts to undermine the authority of Courts or influence judicial proceedings, it may attract contempt jurisdiction.

The balance between contempt law and freedom of speech has become increasingly significant in the digital era. Article 19(1)(a) of the Constitution guarantees the fundamental right to freedom of speech and expression, which includes the right to discuss and critique judicial functioning. However, the rapid spread of online commentary, edited narratives, and viral social media content has made it more difficult to distinguish between legitimate criticism and conduct that may prejudice the administration of justice. As Courts continue to address these evolving digital challenges, the debate surrounding free speech and judicial authority has become more relevant than ever.

Social Media and the Changing Nature of Contempt



The emergence of social media has significantly changed the nature and scope of contempt-related concerns in India. Earlier, public discussions surrounding judicial proceedings were largely limited to newspapers, television debates, and formal publications. Today, platforms such as X (formerly Twitter), Instagram, YouTube, and digital news portals allow instant circulation of opinions, courtroom observations, edited clips, and legal commentary to a much wider audience. Judicial proceedings are now frequently discussed in real time, often without proper context or legal understanding.

The speed and reach of digital platforms have blurred the distinction between fair criticism and content that may interfere with the administration of justice. Viral posts, selective editing of court proceedings, online trolling of judges, and “trial by social media” have become increasingly common in high-profile matters. In many instances, social media narratives are capable of shaping public opinion even before a judicial determination is made. The challenge becomes more serious when misleading or incomplete information spreads rapidly across platforms, making it difficult to control or correct the narrative.

Recent digital controversies and online public campaigns have further highlighted how quickly judicial remarks and pending proceedings can become subjects of widespread public debate and scrutiny. The growing trend of online criticism, memes, influencer commentary, and viral legal discussions has

therefore created new challenges for courts in balancing freedom of expression with the need to preserve public confidence in the judiciary. As a result, the traditional understanding of contempt law is increasingly being tested in the age of instant digital communication.

Virtual Courtrooms and Online Appearances: Emerging Procedural Challenges



The increasing overlap between virtual courtrooms and social media has further complicated the position. Judicial observations made during online hearings are frequently circulated before the final outcome of a case, sometimes leading to misinformation, sensationalised reporting, and public commentary on pending proceedings. These developments highlight the need to balance transparency and accessibility with the integrity of judicial proceedings.

As virtual hearings continue to remain an important component of the justice delivery system, courts may increasingly be required to address issues relating to digital courtroom discipline, unauthorised dissemination of proceedings, and responsible use of technology by litigants, lawyers, media organisations, and members of the public.

Recent Judicial Trends and Challenges in the Digital Era



The rapid growth of digital platforms has significantly changed the nature of contempt-related concerns in India. Unlike traditional media, social media platforms allow instant circulation of opinions, courtroom observations, edited clips, and legal commentary without editorial checks or legal scrutiny. Judicial proceedings and pending matters are now frequently discussed in real time through tweets, reels, videos, podcasts, and online commentary, making it increasingly difficult to control the spread of misleading or prejudicial content.

One of the major concerns in the digital era is the viral spread of misinformation and selective narratives. Edited clips of court proceedings, incomplete reporting, and sensationalised commentary are often capable of shaping public perception even before a final judicial determination is made. Social media has also contributed to the rise of “instant public judgments,” where online audiences form strong opinions regarding ongoing proceedings within minutes of a hearing or judicial observation. The anonymous and borderless nature of digital platforms further complicates accountability and enforcement, particularly where online campaigns, influencers, or anonymous accounts circulate content capable of influencing judicial proceedings.

In recent years, Indian courts have increasingly been required to address the impact of such digital commentary on the administration of justice. Courts are now frequently confronted with issues relating to viral criticism, selective reporting, online misinformation, and public commentary on pending proceedings. Recent

judicial developments indicate that courts are attempting to strike a balance between preserving judicial dignity and protecting the constitutional right to free speech.

One of the most significant recent developments is the Supreme Court's decision in "*Wikimedia Foundation Inc. v. ANI Media Pvt. Ltd. [MANU/SC/0661/2025]*", where the Hon'ble Supreme Court emphasised that courts must remain open to public debate, discussion, and constructive criticism. The Court observed that criticism of courts cannot automatically be treated as contempt merely because it may appear uncomfortable or unpopular. Similarly, in the *Prashant Bhushan Contempt Case [MANU/SC/0653/2020]*, the Supreme Court dealt with tweets criticising the judiciary, reigniting the broader debate surrounding the limits of free speech and criticism of courts in the digital era.

At the same time, Indian courts have repeatedly clarified that while fair criticism of judicial functioning is permissible in a democratic society, statements or publications that scandalise the judiciary, obstruct proceedings, or undermine public confidence in the administration of justice may still attract contempt jurisdiction. As digital platforms continue to reshape public discourse, courts are increasingly being called upon to define the limits of online expression in relation to judicial authority and the administration of justice.

International Perspectives on Contempt in the Digital Era



United Kingdom:

The United Kingdom has gradually adopted a more speech-oriented approach towards

contempt law. In 2013, it abolished the common law offence of "scandalising the Court" through the Crime and Courts Act, reflecting the view that courts should remain open to public criticism in a democratic society. However, strict restrictions continue to exist against publications and online content that may prejudice ongoing judicial proceedings. With the rise of virtual hearings, UK Courts have also taken a firm stance against unauthorised recording and circulation of Court proceedings, recognising the risks posed by instant digital dissemination.

United States:

The United States follows a comparatively stronger free speech model under the First Amendment. Criticism of judges and judicial institutions is generally protected unless it creates a clear and substantial threat to the administration of justice. Courts have largely focused on protecting fair trial rights rather than restricting public criticism of the judiciary. As digital platforms and virtual court proceedings have expanded, American courts have increasingly addressed concerns relating to online commentary, social media influence, and the impact of digital content on judicial proceedings while maintaining a strong commitment to freedom of expression.

Canada:

Canadian Courts recognise contempt jurisdiction as an important mechanism for protecting the administration of justice, while also balancing it with constitutional free speech protections under the Canadian Charter of Rights and Freedoms. In recent years, Canadian courts have increasingly encountered issues relating to social media reporting, online publication of Court-related content, and public commentary on pending proceedings. The focus has largely remained on preventing prejudice to judicial proceedings and ensuring that digital communication does not interfere with fair administration of justice.

Balancing Free Speech and Judicial Authority



The relationship between freedom of speech and the law of contempt requires a careful constitutional balance. While the judiciary must preserve public confidence in the administration of justice, Article 19(1)(a) of the Constitution also protects the right to discuss and critique judicial functioning. In a democratic society, fair and constructive criticism of Courts cannot be restricted merely because it may appear uncomfortable or unpopular.

Indian courts have repeatedly held that contempt powers must be exercised cautiously and only where there is a genuine threat to the administration of justice. In *In Re: S. Mulgaokar* [MANU/SC/0067/1977], the Supreme Court observed that judges should not be hypersensitive to criticism and that contempt jurisdiction should be invoked sparingly. Similarly, in *Wikimedia Foundation Inc. v. ANI Media Pvt. Ltd.* [MANU/SC/0661/2025], the Supreme Court emphasised that courts must remain open to public debate and constructive criticism, particularly in the digital age.

At the same time, freedom of speech does not extend to deliberate attempts to scandalise the judiciary, spread misinformation, or obstruct judicial proceedings. The challenge in the digital era therefore lies in distinguishing legitimate criticism from content that may interfere with the administration of justice. As online commentary continues to shape public discourse around courts and judicial

proceedings, maintaining this balance has become increasingly important.

Suggestions

- Clearer guidelines may be developed regarding online commentary on pending judicial proceedings, particularly in relation to social media platforms and digital publications.
- Courts may continue to exercise contempt jurisdiction with restraint, especially in cases involving fair criticism and public discussion of judicial functioning.
- As virtual hearings become an integral part of the justice delivery system, stronger protocols may be introduced to regulate unauthorised recordings, circulation of screenshots, selective clipping of proceedings, and other forms of digital misuse.
- Greater awareness regarding responsible digital expression and legal reporting can help reduce the spread of misleading or prejudicial content relating to court proceedings.
- Digital platforms and online publishers should ensure that courtroom-related content is shared with proper context and without selective editing or sensationalisation.
- Strengthening public access to accurate judicial information may help counter misinformation and reduce reliance on unofficial digital narratives.
- A balanced approach that protects both judicial dignity and constitutional free speech is essential in maintaining public confidence in the administration of justice in the digital age.

Key takeaway

“In an era driven by instant opinions and viral narratives, the true challenge lies in protecting both judicial dignity and the democratic value of free expression.”

Contributors to this Newsletter:

ABHAY CHITRAVANSHI
PARTNER
Litigation, ADR & White Collar Crimes

BHAWNA NANDA
ASSOCIATE
Litigation, ADR & White Collar Crimes

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AB INITIO LEGAL LLP

Tel: 011-40393888, +91-8800808022

Email: mail@abinitiolegal.in , communications@abinitiolegal.in

**Head Office: 1010, 1011-B, Indraprakash Building, 21, Barakhamba Road,
New Delhi – 110001,**

Chamber No. 395, Lawyers Chamber Block-II, Delhi High Court
Sher Shah Road, New Delhi-110003

Gurgaon: 1003, 10th Floor, Tower-D, Vatika Light House at Vatika Town Square,
Sector 82-A, Gurgaon-122004